



U.S. Department
of Transportation

Research and
Special Programs
Administration

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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11010
(FIRST REVISION)

EXPIRATION DATE: August 31, 1994

(FOR RENEWAL, SEE 49 CFR 107.105.)

1. GRANTEE: Hickson Timber Products LTD., Murrysville, PA.
2. PURPOSE AND LIMITATIONS: This exemption authorizes the transportation in commerce of Division 6.1 liquid in a DOT Specification 57 portable tank which meets the UN criteria for a "protected" 31A metal IBC, subject to the limitation and special provisions herein. Also, this exemption provides no relief from any regulation other than specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.243(c).
5. BASIS. This exemption is based on Hickson Timber Products LTD., application dated April 16, 1993 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon:
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class/Class Number)	Identification Number	Packing Group
Arsenic compounds, liquid, n.o.s.	6.1	UN1556	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The cylindrically shaped 264 gallon (1000 liter) portable tank is designed with an inner lading-retaining wall of 0.110 inch (2.79mm) stainless steel (or equivalent thickness of mild steel according to 49 CFR 270-5), and an outer 0.110 inch (2.79mm) protective mild steel wall with fiber insulation between the cylindrical sidewalls and solid insulation between the top and bottom ends. The top opening is a 2 inch bung type and bottom openings, if used, are 2 inch openings closed by a full port ball valve.

The portable tank meets the requirements of a DOT 57 as well as the UN31A "protected" metal IBC specification as described in Chapter 16 of the "UN Recommendations for the Transport of Dangerous Goods".

b. TESTING - At least one prototype IBC must be satisfactorily subjected to all applicable requirements in 49 CFR 178.251-5 and all applicable test requirements for a UN31A contained in Chapter 16 of the "UN Recommendation for the Transport of Dangerous Goods".

c. MARKING - (i) The sides of each portable tank must be marked in two places, 180° apart, "KEEP THIS END UP" with an arrow pointing to the tank top and "DO NOT STACK OVER 2 HIGH". Also, "DOT-E 11010" must be permanently and durably marked in two places, 180° apart, in characters at least five centimeters (two inches) high on a contrasting background.

(ii) Each portable tank must be marked as specified for both a DOT Specification 57 portable tank and a UN31A intermediate bulk container

d. REUSE - Reuse of any portable tank must be in accordance with the applicable requirements of 49 CFR 173.28 and 173.32(f) as modified herein.

(i) Each portable tank must be hydrostatically retested in accordance with 49 CFR 173.32(f) as applicable to DOT Specification 57 tanks, at a test pressure of 15 psig for 5 minutes without a drop in pressure or leakage. Any tank that fails must be rejected and may not be used again for the transportation of hazardous materials.

(ii) The date of the most recent periodic retest must be marked on the tank near the tank identification markings required in paragraph 7.a. of this exemption. The owner of the tank or his authorized agent must retain a written record indicating the date and results of all required tests and the name and address of the tester, until the next retest has been satisfactorily completed and recorded.

e. OTHER - (i) Any changes in design, or construction methods must be approved by the OHMEA prior to change. Prototype test results for at least one tank involving the tests in paragraph 7.b. above must accompany any request for changes in design, or construction method.

(ii) Fittings must be protected in accordance with 49 CFR 178.253-3.

Continuation of DOT-11010

Page 3

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are compiled with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and vessel.10. MODAL REQUIREMENTS.

a. A copy of this exemption must be carried aboard each vessel, or motor vehicle used to transport packages covered by this exemption.

b. Shipments by vessel must be made in conformance with Section 26 of the General Introduction to the International Maritime Dangerous Goods (IMDG) Code.

c. When transported by vessel, each portable tank must be marked according to the requirements of subsection 26.1.5 of the General Introduction to the IMDG Code with a stacking load of 5300kg maximum. The use of labels, tags, or signs for marking purposes is prohibited.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

a. All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.

b. Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

c. Registration required by 49 CFR 107.601 et seq., when applicable.